

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

FILED
IN CLERK'S OFFICE
U.S. DISTRICT COURT E.D.N.Y.

★ NOV 17 2009 ★

BROOKLYN OFFICE

----- X
LEEDELL WALKER,

Plaintiffs,

-against-

THE CITY OF NEW YORK, JAMES DELUMEN,
WILLIAM DEAN, and FAWAD KHAN,

Defendants.
----- X

COMPLAINT

09

5054

PLAINTIFF DEMANDS
A TRIAL BY JURY

GO, M.J.

BLOCK, J.

Plaintiff Leedell Walker, by his attorneys, Reibman & Weiner, as and for his
Complaint, hereby allege as follows, upon information and belief:

PARTIES, VENUE and JURISDICTION

1. At all times hereinafter mentioned plaintiff Leedell Walker was an adult male and a resident of Kings County in the State of New York.
2. At all relevant times hereinafter mentioned, defendant City of New York ("New York City"), was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York and acts by and through its agencies, employees and agents, including, but not limited to, the New York City Police Department ("NYPD") and its employees.
3. At all times hereinafter mentioned, defendant James Delumen was a member of the NYPD, shield 31681, and was employed, retained, trained and supervised by New York City. Delumen is sued herein in his official and individual capacities.
4. At all times hereinafter mentioned, defendant William Dean was a

①

member of the NYPD, shield 06379, and was employed, retained, trained and supervised by New York City. Dean is sued herein in his official and individual capacities.

5. At all times hereinafter mentioned, defendant Fawad Khan was a member of the NYPD, tax registry no.: 925537, and who was employed, retained, trained and supervised by New York City. Khan is sued herein in his official and individual capacities.

6. Plaintiff timely served a Notice of Claim on the municipal defendant.

7. At least thirty days have elapsed since service of plaintiff's Notice of Claim and adjustment and payment thereof has been neglected or refused.

8. That the within action has been initiated within one year and ninety days of the happening of certain of the events of which plaintiff complains.

9. This Court has jurisdiction of this action pursuant to 28 U.S.C. §§ 1331, 1343 and 1367, and 42 U.S.C. § 1983.

10. Venue is properly laid, pursuant to 28 U.S.C. Section 1391, et seq. in the Eastern District of New York, where three of the plaintiffs and defendant City of New York reside, and where the events complained of herein occurred.

RELEVANT FACTS

11. On or about November 1, 2007, at about 8:00 p.m., plaintiff exited his home on Malcolm X boulevard in Kings County with the intention of visiting his fiancé. As he walked towards his vehicle, he encountered a neighbor, Clarence Rhodes, who was present on the sidewalk near plaintiff's home.

12. After speaking briefly with Mr. Rhodes, plaintiff resumed walking towards his vehicle, at which time two of the defendants arrived and seized both men. Plaintiff was

handcuffed, searched and questioned at length about whether he knew anything about guns and drugs.

13. Although plaintiff was not in possession of any weapons, narcotics, or other contraband, defendants held him at the scene of his arrest for or about 30 minutes.

14. At least one of the defendants searched with a flashlight under various parked vehicles. Eventually Delumen claimed to have found a "twist" containing crack cocaine under one of the parked cars.

15. Plaintiff was then taken from the scene of the arrest to a local NYPD station house, and then eventually to Kings County Central Booking.

16. After being detained for more than 24 hours, plaintiff was arraigned in New York Criminal Court, Kings County.

17. Prior to arraignment, defendant Dean swore out a complaint alleging that defendant Delumen had witnessed plaintiff hand narcotics to Rhodes in exchange for cash.

18. Defendants' allegations that Delumen had observed plaintiff engage in a narcotics transaction was materially false, and defendants knew such statements to be false at the time they were made.

19. At no time on November 1, 2007, did plaintiff have narcotics in his custody, control or possession, and at no time did he make any attempt to engage in a narcotics transaction with Mr. Rhodes or anybody else.

20. At no time did plaintiff engage in any conduct that could reasonably lead the defendants to believe that plaintiff had engaged in any criminal conduct.

21. The criminal court set bail for plaintiff at \$1,000, and Mr. Walker was

returned to Rikers Island, where he remained for a period of days before he was released.

22. While in Rikers Island, plaintiff was violently assaulted by several inmates.

23. One or more of the defendants testified before the Grand Jury, at which time said defendants gave materially false or misleading testimony concerning the circumstances surrounding plaintiffs' arrest.

24. As a result of defendants' false statements of fact to the Kings County District Attorney's Office and Grand Jury, as well as the omission of accurate and truthful reports by the other defendants, plaintiff was indicted in a four-count indictment, 10947/2007, which charged Mr. Walker with four criminal counts related to the sale and/or possession of narcotics.

25. But for the defendants' false statements of fact to the Kings County District Attorney's Office and Grand Jury, as well as the omission of accurate and truthful reports by the other defendants, there was insufficient cause to sustain plaintiff's arrest or support his indictment, and there was no probable cause to believe plaintiff could be successfully prosecuted, other than the materially false statements and claims offered by the defendants.

26. Delumen appeared before the court at a pre-trial hearing, during which he again gave materially false testimony concerning the arrest of plaintiff. Delumen claimed, in substance, that he personally observed the hand-to-hand sale, and promptly recovered crack cocaine on the sidewalk at the location of the sale. These claims were patently false and Delumen knew them to be false. As a result of this false testimony, the prosecution of plaintiff survived a motion to dismiss and went to trial.

27. During the course of a five-day trial in November 2008, the defendants

again offered the same generally false testimony against plaintiff. Notwithstanding the defendants' best efforts to convince the jury to wrongly convict plaintiff, Mr. Walker was acquitted on all counts.

28. At no time did the defendants have sufficient legal cause to detain, seize or arrest either plaintiff, nor was there a reasonable basis for defendants to believe that such cause existed. Defendants' fabrication of evidence was indefensible and patently unreasonable.

29. At no time did any of the defendants take any steps to intervene in, prevent, or otherwise limit the unlawful and unconstitutional conduct of the other defendants.

30. That at all times relevant herein, the defendants were acting within the scope of their employment, and their acts were done in furtherance of the City of New York's interests and without legal justification or excuse.

FIRST CAUSE OF ACTION

31. Plaintiffs repeat the allegations contained in paragraphs "1" through "30" above as though stated fully herein.

32. Defendants willfully and intentionally seized, searched, and arrested plaintiff without probable cause, and without a reasonable basis to believe such cause existed.

33. Defendants willfully and intentionally caused criminal process to be commenced against the plaintiff for which there was no probable cause by maliciously fabricating evidence. The criminal process against the plaintiffs was terminated in his favor.

34. By so doing, the individual defendants, individually and collectively, subjected the plaintiff to false arrest and imprisonment, unlawful searches of person and

property, malicious prosecution, and the loss of his right to due process, and thereby violated, conspired to violate, and aided and abetted in the violation of plaintiffs' rights under the Fourth and Fourteenth Amendments of the United States Constitution.

35. By reason thereof, the individual defendants have violated 42 U.S.C. §1983 and caused plaintiff to suffer emotional and physical injuries, mental anguish, the deprivation of liberty, and the loss of his constitutional rights.

SECOND CAUSE OF ACTION

36. Plaintiffs repeat the allegations contained in paragraphs "1" through "35" above as though stated fully herein.

37. Plaintiff was intentionally, willfully, maliciously and/or with reckless disregard, seized, arrested, imprisoned plaintiff, and caused plaintiff to be subjected to false criminal charges.

38. At no time did defendants have probable cause, legal justification, authority, or any colorable legal basis for seizing, arresting, detaining, or commencing process against plaintiff, and said conduct was unlawful.

39. At no time did was there any reasonable basis for defendants to believe they had probable cause, legal justification, authority, or any colorable legal basis for seizing, arresting, detaining, or commencing process against plaintiff.

40. The defendants are therefore liable to plaintiff for false arrest and imprisonment, and malicious use and abuse of process.

41. By reason of the foregoing, defendants have caused plaintiff to suffer emotional and physical injuries, mental anguish, and unlawful incarceration.

DEMAND FOR A JURY TRIAL

Pursuant to Fed. R. Civ. P. 38, plaintiff hereby demands a jury trial of all issues capable of being determined by a jury.

WHEREFORE, the plaintiff demands judgment against defendants jointly and severally as follows:

- i. on the first cause of action actual and punitive damages in an amount to be determined at trial;
- ii. on the second cause of action actual and punitive damages in an amount to be determined at trial;
- iii. statutory attorney's fees pursuant to, *inter alia*, 42 U.S.C. §1988 and New York common law, disbursements, and costs of this action; and
- iv. such other relief as the Court deems just and proper.

Dated: Brooklyn, New York
November 16, 2009

REIBMAN & WEINER

By: 
Michael B. Lumer (ML-1947)
Attorneys for Plaintiff
26 Court Street, Suite 1005
Brooklyn, New York 11242
(718) 522-1743

The JS 44 civil cover sheet and the information contained herein neither replace nor supplement the filing and service of pleadings or other papers as required by law, except as provided by local rules of court. This form, approved by the Judicial Conference of the United States in September 1974, is required for the use of the Clerk of the Court for the purpose of initiating the civil docket sheet. (SEE INSTRUCTIONS ON THE REVERSE OF THE FORM.)

U.S. DISTRICT COURT E.D.N.Y.

I. PLAINTIFFS

Leedell Walker

(b) County of Residence of First Listed Plaintiff Kings

(EXCEPT IN U.S. PLAINTIFF CASES)

(c) Attorney's (Firm Name, Address, and Telephone Number)

Reibman & Weiner, 26 Court Street, Suite 1005
Brooklyn, NY 11242 (718) 522-1743

DEFENDANTS

The City of New York, James Delumen, William Dean, and
Fawad Khan

County of Residence of First Listed Defendant

(IN U.S. PLAINTIFF CASES ONLY)

NOTE: IN LAND CONDEMNATION CASES, USE THE LOCATION OF THE
LAND INVOLVED.

Attorneys (If Known)

BROOKLYN OFFICE

NOV 17 2009

II. BASIS OF JURISDICTION (Place an "X" in One Box Only)

- ☐ 1 U.S. Government Plaintiff
- ☒ 3 Federal Question (U.S. Government Not a Party)
- ☐ 2 U.S. Government Defendant
- ☐ 4 Diversity (Indicate Citizenship of Parties in Item III)

III. CITIZENSHIP OF PRINCIPAL PARTIES (Place an "X" in One Box for Plaintiff and One Box for Defendant)

- Citizen of This State ☐ 1 ☐ 1
- Citizen of Another State ☐ 2 ☐ 2
- Citizen or Subject of a Foreign Country ☐ 3 ☐ 3
- Incorporated and Principal Place of Business in This State ☐ 4 ☐ 4
- Incorporated and Principal Place of Business in Another State ☐ 5 ☐ 5
- Foreign Nation ☐ 6 ☐ 6

IV. NATURE OF SUIT (Place an "X" in One Box Only)

CONTRACT	TORTS	FORFEITURE/PENALTY	BANKRUPTCY	OTHER STATUTES	
☐ 110 Insurance ☐ 120 Marine ☐ 130 Miller Act ☐ 140 Negotiable Instrument ☐ 150 Recovery of Overpayment & Enforcement of Judgment ☐ 151 Medicare Act ☐ 152 Recovery of Defaulted Student Loans (Excl. Veterans) ☐ 153 Recovery of Overpayment of Veteran's Benefits ☐ 160 Stockholders' Suits ☐ 190 Other Contract ☐ 195 Contract Product Liability ☐ 196 Franchise	PERSONAL INJURY ☐ 310 Airplane ☐ 315 Airplane Product Liability ☐ 320 Assault, Libel & Slander ☐ 330 Federal Employers' Liability ☐ 340 Marine ☐ 345 Marine Product Liability ☐ 350 Motor Vehicle ☐ 355 Motor Vehicle Product Liability ☐ 360 Other Personal Injury CIVIL RIGHTS ☐ 441 Voting ☐ 442 Employment ☐ 443 Housing/Accommodations ☐ 444 Welfare ☐ 445 Amer. w/Disabilities - Employment ☐ 446 Amer. w/Disabilities - Other ☒ 440 Other Civil Rights	PERSONAL INJURY ☐ 362 Personal Injury - Med. Malpractice ☐ 365 Personal Injury - Product Liability ☐ 368 Asbestos Personal Injury Product Liability PERSONAL PROPERTY ☐ 370 Other Fraud ☐ 371 Truth in Lending ☐ 380 Other Personal Property Damage ☐ 385 Property Damage Product Liability PRISONER PETITIONS ☐ 510 Motions to Vacate Sentence Habeas Corpus: ☐ 530 General ☐ 535 Death Penalty ☐ 540 Mandamus & Other ☐ 550 Civil Rights ☐ 555 Prison Condition	☐ 610 Agriculture ☐ 620 Other Food & Drug ☐ 625 Drug Related Seizure of Property 21 USC 881 ☐ 630 Liquor Laws ☐ 640 R.R. & Truck ☐ 650 Airline Regs. ☐ 660 Occupational Safety/Health ☐ 690 Other LABOR ☐ 710 Fair Labor Standards Act ☐ 720 Labor/Mgmt. Relations ☐ 730 Labor/Mgmt. Reporting & Disclosure Act ☐ 740 Railway Labor Act ☐ 790 Other Labor Litigation ☐ 791 Empl. Ret. Inc. Security Act IMMIGRATION ☐ 462 Naturalization Application ☐ 463 Habeas Corpus - Alien Detainee ☐ 465 Other Immigration Actions	☐ 422 Appeal 28 USC 158 ☐ 423 Withdrawal 28 USC 157 PROPERTY RIGHTS ☐ 820 Copyrights ☐ 830 Patent ☐ 840 Trademark SOCIAL SECURITY ☐ 861 HIA (1395ff) ☐ 862 Black Lung (923) ☐ 863 DIWC/DIWW (405(g)) ☐ 864 SSID Title XVI ☐ 865 RSI (405(g)) FEDERAL TAX SUITS ☐ 870 Taxes (U.S. Plaintiff or Defendant) ☐ 871 IRS—Third Party 26 USC 7609	☐ 400 State Reapportionment ☐ 410 Antitrust ☐ 430 Banks and Banking ☐ 450 Commerce ☐ 460 Deportation ☐ 470 Racketeer Influenced and Corrupt Organizations ☐ 480 Consumer Credit ☐ 490 Cable/Sat TV ☐ 810 Selective Service ☐ 850 Securities/Commodities/Exchange ☐ 875 Customer Challenge 12 USC 3410 ☐ 890 Other Statutory Actions ☐ 891 Agricultural Acts ☐ 892 Economic Stabilization Act ☐ 893 Environmental Matters ☐ 894 Energy Allocation Act ☐ 895 Freedom of Information Act ☐ 900 Appeal of Fee Determination Under Equal Access to Justice ☐ 950 Constitutionality of State Statutes

V. ORIGIN

- (Place an "X" in One Box Only)
- ☒ 1 Original Proceeding
- ☐ 2 Removed from State Court
- ☐ 3 Remanded from Appellate Court
- ☐ 4 Reinstated or Reopened
- ☐ 5 Transferred from another district (specify)
- ☐ 6 Multidistrict Litigation
- ☐ 7 Appeal to District Judge from Magistrate Judgment

VI. CAUSE OF ACTION

Cite the U.S. Civil Statute under which you are filing (Do not cite jurisdictional statutes unless diversity):

42 USC 1983

Brief description of cause:

Plaintiff falsely arrested and maliciously prosecuted

VII. REQUESTED IN COMPLAINT:

☐ CHECK IF THIS IS A CLASS ACTION UNDER F.R.C.P. 23

DEMAND \$

CHECK YES only if demanded in complaint:

JURY DEMAND: ☒ Yes ☐ No**VIII. RELATED CASE(S) IF ANY**

(See instructions):

JUDGE

DOCKET NUMBER

DATE

SIGNATURE OF ATTORNEY OF RECORD

11/16/2009

FOR OFFICE USE ONLY

RECEIPT # _____ AMOUNT _____ APPLYING IFP _____ JUDGE _____ MAG. JUDGE _____

ARBITRATION CERTIFICATION
I, _____, counsel for _____ do hereby
certify pursuant to the Local Arbitration Rule 83.10 that to the best of my knowledge and belief the damages
recoverable in the above captioned civil action exceed the sum of \$150,000 exclusive of interest and costs.
Relief other than monetary damages is sought. N/A

DISCLOSURE STATEMENT - FEDERAL RULES CIVIL PROCEDURE 7.1

Identify any parent corporation and any publicly held corporation that owns 10% or more of its stocks:
N/A

Please refer to NY-E Division of Business Rule 50.1(d)(2)

1.) Is the civil action being filed in the Eastern District of New York removed from a New York State court located
in Nassau or Suffolk County? No

2.) If you answered "no" above:

a.) Did the events or omissions giving rise to the claim or claims, or a substantial part thereof, occur in Nassau
or Suffolk County? No

b.) Did the events or omissions giving rise to the claim or claims, or a substantial part thereof, occur in the
Eastern District? Yes

If your answer to question 2 (b) is "No," does the defendant (or a majority of the defendants, if there is more than
one) reside in Nassau or Suffolk County, or, in an interpleader action, does the claimant (or a majority of the
claimants, if there is more than one) reside in Nassau or Suffolk County? No

(Note: A corporation shall be considered a resident of the County in which it has the most significant contacts).

I am currently admitted in the Eastern District of New York and currently a member in good standing of the
bar of this court.

Yes ✓

No _____

Are you currently the subject of any disciplinary action(s) in this or any other state or federal court?

Yes _____ (If yes, please explain)

No ✓

Please provide your E-MAIL Address and bar code below. Your bar code consists of the initials of your first and last
name and the last four digits of your social security number or any other four digit number registered by the attorney
with the Clerk of Court.

(This information must be provided pursuant to local rule 11.1(b) of the civil rules).

ATTORNEY BAR CODE: ML-1947

E-MAIL Address: mlumer@reibmanweiner.com

I consent to the use of electronic filing procedures adopted by the Court in Administrative Order No. 97-12, "In re
Electronic Filing Procedures(EFP)", and consent to the electronic service of all papers.

Signature: 